

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Filed: _____

-----X
LAWRENCE DIXON,

Index No:

Plaintiff,

Plaintiff designates Bronx County
as the place of trial.

-against-

S U M M O N S

THE CITY OF NEW YORK, THE HON. DARCEL CLARK
THE DISTRICT ATTORNEY FOR THE COUNTY OF BRONX,
POLICE OFFICER YARITZA FRANCISCO, DETECTIVE
SALVATORE GIARDINA, and POLICE OFFICER JUAN R.
SANCHEZ,

The basis of venue is the county in
which the events or omissions
giving rise to the claim occurred

Defendants.
-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons,
exclusive of the day of service of this summons, or within 30 days after service of this summons
is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against
you for the relief demanded in the complaint, together with the costs of this action.

Dated: November 28, 2023

DELLA MURA & CIACCI LLP.
Attorneys for Plaintiff
LAWRENCE DIXON
981 Allerton Avenue
Bronx, New York 10469
(718) 405-1500

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

HON. DARCEL CLARK
198 E 161 Street
Bronx, NY 10451

POLICE OFFICER YARITZA FRANCISCO
49th Precinct
2121 Eastchester Rd,
Bronx, NY 10461

DETECTIVE SALVATORE GIARDINA
49th Precinct Detective Squad
2121 Eastchester Rd
Bronx, NY 10461

POLICE OFFICER JUAN R. SANCHEZ
49th Precinct
2121 Eastchester Rd
Bronx, NY 10461

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
LAWRENCE DIXON,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE HON. DARCEL CLARK
THE DISTRICT ATTORNEY FOR THE COUNTY OF BRONX,
POLICE OFFICER YARITZA FRANCISCO, DETECTIVE
SALVATORE GIARDINA, and POLICE OFFICER JUAN R.
SANCHEZ,

Defendants.
-----X

Index No:

VERIFIED COMPLAINT

Plaintiff LAWRENCE DIXON (hereinafter "Plaintiff"), by his attorneys, DELLA MURA
& CIACCI LLP, and as for his Verified Complaint, respectfully alleges, upon information and
belief:

**AS FOR A FIRST CAUSE OF ACTION
(FALSE ARREST AND IMPRISONMENT)**

1. The Plaintiff at all relevant times was a resident of County of Bronx in the State of New York and is presently a resident of County of New York in the State of New York.
2. At all times herein mentioned, defendant THE CITY OF NEW YORK (hereinafter "the CITY"), was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. That at all times mentioned herein, the CITY operated, maintained, managed, and controlled the Police Department of the City of New York.
4. That the Police Department of the City of New York is an agency, instrumentality, department of defendant the CITY, and/or defendant CITY derived benefit from the activities of the Police Department of the City of New York.

5. That at all times mentioned herein, defendant the CITY operated, maintained, managed, and controlled the Office of the District Attorney, County of Bronx, including its officer and/or agent the Defendant Hon. Darcel Clark.

6. That the Defendant Hon. Darcel Clark is the District Attorney for the County of Bronx, State of New York, (hereinafter the "DA") and, as such, is an officer and/or agent of the defendant CITY, and/or defendant CITY derived benefit from the activities of the DA.

7. The defendants POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, and POLICE OFFICER JUAN R. SANCHEZ were employed by the Police Department of the City of New York as police officers.

8. That at all times mentioned herein, POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, and POLICE OFFICER JUAN R. SANCHEZ were acting within the scope of their employment as police officers employed by the Police Department of the City of New York.

9. That at all times mentioned herein, defendants POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, and POLICE OFFICER JUAN R. SANCHEZ first name being unknown to the Plaintiff were acting under color of law and authority as police officers employed by the Police Department of the City of New York.

10. That the DA is a policymaker of and for the CITY regarding the management, supervision, and training of Assistant District Attorneys in the Office of the District Attorney for the County of Bronx, State of New York.

11. That the DA and/or the CITY promulgated policy, practices and/or customs, amounting to the deliberate indifference to, and impacting upon, the Plaintiffs' civil rights, including but not limited to, those guaranteed by the Federal and State Constitutions, within the County of Bronx.

12. That said policy, practices, and/or customs, included a failure to properly instruct, train and/or supervise employees, including the Assistant District Attorney (hereinafter "ADA") and others involved in the investigation and prosecution of the Plaintiff in the underlying criminal action that is the subject hereof.

13. That the DA, and the CITY, perpetuated, or failed to take steps to terminate, said policy, practices and/or customs, did not discipline or otherwise properly supervise the individual prosecutorial personnel who were allowed to and did engage in them, did not effectively instruct, train and/or supervise such personnel, including individual ADAs, with regard to the proper constitutional and statutory requirements in the exercise of their authority, but instead sanctioned the offending policies, practices and/or customs with a deliberate indifference to their effect on the individual constitutional rights of the Plaintiffs and persons similarly situated.

14. That the Plaintiff has served notice, in accordance with applicable statutes, on the Defendants and that at least 30 days have elapsed since the service of such notice and that adjustment or payment thereof has been neglected or refused.

15. That the Plaintiffs have fully complied with defendants' demand for examination or that said demand has been otherwise waived.

16. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based.

17. On or about March 10, 2022, in the County of Bronx, the Plaintiff LAWRENCE DIXON was unlawfully detained arrested and imprisoned by agents, servants and/or employees of defendant CITY, including defendants POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, and POLICE OFFICER JUAN R. SANCHEZ who at that time were police officers acting within the scope of their employment.

18. That the aforesaid arrest and imprisonment was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest and imprisonment.

19. That defendant CITY, through its agents, servants and/or employees, including POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, and POLICE OFFICER JUAN R. SANCHEZ acted in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of Plaintiff.

20. At the time of his unlawful arrest and imprisonment, Plaintiff had not committed or attempted to commit any illegal act.

21. At the time of Plaintiff's unlawful arrest and imprisonment, the defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment was false and without probable cause.

22. That the aforesaid arrest and imprisonment was made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal complaint(s).

23. The aforesaid false arrest and imprisonment caused Plaintiff to suffer severe physical injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses, financial loss, and damage to his reputation.

24. By reason of the foregoing, the defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION
(MALICIOUS PROSECUTION)**

25. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "24" of the complaint as if fully set forth herein.

26. On or about March 10, 2022, the defendants intentionally, knowingly, recklessly,

negligently and with malice caused the commencement of a criminal prosecution against the Plaintiff in the Criminal Court of the City of New York, County of Bronx, upon the filing of an accusatory instrument without probable cause.

27. In commencing and continuing the said malicious prosecution defendants caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

28. The Plaintiff has not committed or attempted to commit any illegal act(s).

29. The Plaintiff has not given defendant CITY, its agents, servants and/or employees, including defendant DA, and defendants POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, and POLICE OFFICER JUAN R. SANCHEZ, probable cause to believe that he had committed the falsely charged illegal acts.

30. The defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that the said investigation into this matter was flawed and incomplete.

31. That the defendants maliciously, knowingly, and intentionally caused and were otherwise deliberately indifferent to, the presentation of materially false and incomplete testimony and evidence to a convened Grand Jury, which returned indictment no. 70939-2022 against the Plaintiff.

32. The defendant CITY, its agents, servants and/or employees, including defendant DA, and POLICE OFFICER YARITZA FRANCISCO DETECTIVE SALVATORE GIARDINA, and POLICE OFFICER JUAN R. SANCHEZ, willfully, negligently and wrongfully accused the Plaintiff of having committed acts in violation of the Penal Law of the State of New York.

33. The defendant CITY, its agents, servants and/or employees, including defendant DA, and POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, and POLICE OFFICER JUAN R. SANCHEZ, willfully, negligently and wrongfully continued to

prosecute the Plaintiff for alleged violations of the Penal Law of the State of New York, even though the defendants knew or should have known of facts and circumstances that would have lead a reasonable person to conclude that the criminal complaint, upon which said criminal prosecution was based, contained material falsehoods and was otherwise improper, and that the continued prosecution of the Plaintiff was, therefore, improper under the circumstances.

34. That the DA and/or the CITY effectively promulgated policy, practices and/or customs, amounting to the deliberate indifference in, and impacting upon, the Plaintiff's civil rights, including but not limited to, those guaranteed by the Federal and State Constitutions, within the County of Bronx, and said policies include, but are not limited to, the withholding of exculpatory evidence by ADAs and employees and members of the New York City Police Department, and the countenance by ADAs of acts of misbehavior by employees and members of the New York City Police Department, including the violation of the civil rights of the Plaintiffs and persons similarly situated, and the failure to properly instruct, train and/or supervise employees, including the ADA and others involved in the investigation and prosecution of Plaintiff in the underlying criminal action that is the subject hereof.

35. That the DA, and the CITY, perpetuated, failed to take steps to terminate, said policy, practices and/or customs, did not discipline or otherwise properly supervise the individual prosecutorial personnel who were allowed to and did engage in them, did not effectively instruct, train and/or supervise such personnel, including individual ADAs, with regard to the proper constitutional and statutory requirements in the exercise of their authority, but instead sanctioned the offending policies, practices and/or customs with a deliberate indifference to their effect on the individual constitutional rights of the Plaintiff and persons similarly situated.

36. That the criminal prosecution against the Plaintiff was dismissed by a Judge of the Supreme

Court of the State of New York, Bronx County on or about September 23, 2022 upon the motion of the Assigned Assistant District Attorney.

37. As a result of the malicious prosecution, the Plaintiff was caused to suffer and continue to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of wages, legal expenses, financial loss, and damage to his reputation.

38. By reason of the foregoing, the defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION
(INFLECTION OF EMOTIONAL DISTRESS)**

39. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "38" of the complaint as if fully set forth herein.

40. The aforementioned actions of defendants were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

41. Defendants acted with the desire and intent to cause Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

42. Defendants intentionally, knowingly, willfully, recklessly, negligently and wrongfully caused Plaintiffs emotional distress at acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

43. Defendants acted with utter disregard of the consequences of their actions.

44. As a result, Plaintiff was caused in suffer the infliction of emotional distress.

45. By reason of the foregoing, defendants became liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
(NEGLIGENCE)

46. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "45" of the complaint as if fully set forth herein.

47. The actions of defendant CITY, through its agents, servants and/or employees, including POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, and POLICE OFFICER JUAN R. SANCHEZ heretofore described constitutes negligence in that defendant CITY negligently trained or failed to train its agents, servants, or employees, especially including POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, POLICE OFFICER JUAN R. SANCHEZ and the ADA(s) assigned to and responsible for the investigation and prosecution of the Plaintiff.

48. The actions of defendant CITY, through its agents, servants, or employees, including defendant DA, and POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, and POLICE OFFICER JUAN R. SANCHEZ, heretofore described constitutes negligence in that defendant CITY negligently supervised or failed to supervise its agents, servants, or employees, especially including POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, POLICE OFFICER JUAN R. SANCHEZ and the ADA(s) assigned to and responsible for the investigation and prosecution of the Plaintiff.

49. The actions of defendant CITY, through its agents, servants, or employees, including defendant DA, and POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, and POLICE OFFICER JUAN R. SANCHEZ heretofore described constitutes negligence in that defendant CITY negligently disciplined or failed to discipline its agents, servants, or employees, especially including defendant DA, and defendants POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, POLICE OFFICER JUAN

R. SANCHEZ and the ADA(s) assigned to and responsible for the investigation and prosecution of the Plaintiff.

50. Defendant CITY was negligent in its hiring of its agents, servants and/or employees, especially including defendant DA, POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, POLICE OFFICER JUAN R. SANCHEZ and the ADA(s) assigned to and responsible for the investigation and prosecution of the Plaintiffs, who defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions.

51. Defendant CITY was negligent in its retention of its agents, servants and/or employees, especially including defendant DA, and POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, POLICE OFFICER JUAN R. SANCHEZ, and the ADA(s) assigned to and responsible for the investigation and prosecution of the Plaintiffs, who defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused their positions.

52. That the defendants, their agents, servants, and/or employees were otherwise, and in general, careless, reckless and negligent under the circumstances existing as previously described.

53. All of the causes of action of their complaint are specifically excepted under C.P.L.R. § 1602.

54. As a result of the negligence of defendant CITY and the acts of defendant DA, and POLICE OFFICER YARITZA FRANCISCO, DETECTIVE SALVATORE GIARDINA, POLICE OFFICER JUAN R. SANCHEZ and other agents, servants and/or employees of the CITY, without any negligence on the part of Plaintiff, Plaintiff was caused to suffer severe and permanent personal

injuries, pain and suffering, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, and loss of wages, financial loss, legal expenses, and damage to their reputation.

55. By reason of the foregoing, defendants became liable to Plaintiffs in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION
(VIOLATION OF CIVIL RIGHTS)**

56. The Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "55" of the complaint as if forth set forth herein.

57. The actions of defendants heretofore described resulting from the March 10, 2022, arrest, detention, imprisonment, assault, use of excessive force, and prosecution of the Plaintiff, constitute an unlawful arrest, imprisonment, assault, use of excessive force, and malicious prosecution which deprived the Plaintiff of rights, privileges, and immunities guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§ 1981, 1983, 1985, 1986, and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the defendant CITY's agents, servants and/or employees, and those involving the arrest, detention and prosecution of individuals, including and especially, those persons such as the Plaintiff who are of African American ethnic descent.

58. That the defendants established a custom, policy and/or practice of encouraging, approving, and/or tolerating the use by the New York City Police Department ("NYPD") of excessive force and acts of misconduct against civilians, and especially those civilians who are of African American descent, and subsequent attempts to conceal such actions by failing to

adequately train, supervise, and discipline its agents, employees and officers.

59. That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating ADA's in their withholding of exculpatory evidence and their countenance of the use by the New York City Police Department ("NYPD") of excessive force and acts of misconduct against civilians, and especially those civilians who are of African American descent, and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

60. That the Defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians, and especially those civilians who are of African American descent, and established a custom, policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by ADAs and the NYPD and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

61. The defendants have deprived the Plaintiff of his liberty in violation of his civil and constitutional rights as set forth in the United States Constitution, 42 U.S.C. § 1983 and the Constitution of the State of New York.

62. The defendants' actions were undertaken under color of law and would not have existed but for said defendants' use of their official power.

63. That the defendants conspired with each other and acted in concert to discriminate against and deprive the Plaintiff of his Constitutional and Civil rights.

64. The supervisors and policy making officers of defendant CITY and its Police Department, and defendant DA, and the Office of the District Attorney, as a matter of policy, are deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed

practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

65. The defendant CITY and defendant DA have failed to properly and effectively train its agents, servants and/or employees, with regard to proper constitutional and statutory limits and the exercise of their authority, and such failure continues to this day.

66. The defendant CITY and defendant DA have sanctioned the policy and practices heretofore described through its deliberate indifference to the effect of such policy and practices upon the constitutional rights of the Plaintiff and others similarly situated.

67. That the defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

68. By reason of the foregoing, the Plaintiff has been damaged and suffered serious and severe permanent physical injuries, emotional distress and emotional harm as a result of these\ deprivations of constitutional and civil rights.

69. As a result, the defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION
(ATTORNEY'S FEES)**

70. The Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "69" of the complaint as if fully set forth herein.

71. The actions of Defendants heretofore described resulting from the March 10, 2022, arrest, detention, imprisonment, assault, use of excessive force, and prosecution of the Plaintiff, constitute an unlawful arrest, imprisonment, assault, use of excessive force, and malicious prosecution which deprived the Plaintiff of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the

Civil Rights Acts, 42 U.S.C. §§ 1981, 1983, 1985, 1986, and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the hiring, training supervision, retention and discipline of the CITY's agents, servants and/or employees, and those involving the arrest, detention, and prosecution of individuals, including and especially, those persons such as the Plaintiff who are of African American ethnic descent.

72. That the Plaintiff has incurred significant attorneys' fees in the prosecution of the above referenced claims against the defendants.

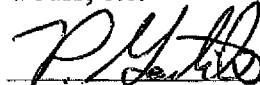
73. In the event that the Plaintiff is successful in the prosecution of the aforesaid claim(s), Plaintiffs shall be prevailing parties within the meaning of 42 USC § 1988 and entitled to the recovery of said attorney's fees from the defendants.

74. As a result, the defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against the defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction, together with the costs and disbursements of their action.

Dated: Bronx, New York
November 28, 2023

Yours, etc.



Paul D. Gentile, Esq.
Della Mura & Ciacci LLP
Attorneys for Plaintiff
LAWRENCE DIXON
981 Allerton Avenue
Bronx, New York 10469
(718) 405-1500

VERIFICATION

STATE OF NEW YORK)
)
) SS.:
COUNTY OF Bronx)

Lawrence Dixon, being duly sworn, deposes and says:

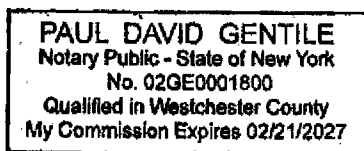
That deponent is the plaintiff in the within action. That deponent has read the foregoing Summons and Verified Complaint and knows the contents therein to be alleged upon information and belief and that as to those matters, deponent believes them to be true.

X 52

Sworn to before me this
28th day November, 2023

P. M. A.

Notary Public



ALL-STATE LEGAL®
07181-BF • 07182-BL • 07183-GY • 07184-WH
800.222.0510 www.eslegal.com

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LAWRENCE DIXON,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE HON. DARCEL CLARK
THE DISTRICT ATTORNEY FOR THE COUNTY OF BRONX,
POLICE OFFICER YARITZA FRANCISCO, DETECTIVE
SALVATORE GIARDINA,

Defendant.

~~SUMMONS AND VERIFIED COMPLAINT~~

DELLA MURA & CIACCI LLP
ATTORNEYS AND COUNSELLORS AT LAW

Attorney(s) for

Plaintiff

981 ALLERTON AVENUE
BRONX, NEW YORK 10469

TELEPHONE (718) 405-1500

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated:

Signature

Print Signer's Name.....

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on

20

, at

M.

Dated: